STATE OF NEW YORK
COUNTY OF WESTCHESTER: YONKERS FAMILY COURT
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IN THE MATTER OF:

TARA KATELYN WALSH,

Petitioner,

- vs. -

STEPHEN GRANT RUSSELL,
Respondent.

FILE NO: 154703
DOCKET NO.: V-07641-18
O-12635-19
V-07641-18/19F
O-12635-19/20F
V-07641-18/20M
V-07641-18/20O

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STEPHEN GRANT RUSSELL,
Petitioner,

- vs. -

TARA KATELYN WALSH,
Respondent.

DOCKET NO.: V-07641-18/21Q
V-07641-18/19G
V-07641-18/19H
O-12635-19/19B
O-12635-19/19C
O-01070-21
O-12635-19/21G
V-07641-18/21P
V-07641-18/21R
O-01070-21/21A
O-12635-19/21H

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Virtual Proceeding
131 Warburton Avenue, Third Floor
Yonkers, New York 10701
May 19, 2021

BEFORE: HONORABLE MICHELLE I. SCHAUER, Part 17

APPEARANCES: CHRISTOPHER SCOTT WEDDLE, ESQ.
Attorney for Tara Walsh
MASSIMO DIFABIO, ESQ.
Attorney for Stephen G. Russell
JENNIFER MARIE JACKMAN, ESQ.
Attorney for the child

ALSO PRESENT: Tara Katelyn Walsh, Petitioner/Respondent
Stephen Grant Russell, Respondent/Petitioner

Digital Recorded Proceeding, Valeri Wilson, Transcriber

(2:53:33 p.m.)

COURT OFFICER: Good afternoon, Your Honor, this is Yonkers Family Court, Part 17. This is cases 3 through 23 on the Court's calendar. Family unit number 154703 in the matter of Walsh and Russel. Counsel, please state your appearance for the record starting with Mr. DiFabio.

MR. DIFABIO: Good afternoon, Your Honor, Max DiFabio for Petitioner/Respondent, Stephen Russell.

COURT OFFICER: Mr. Weddle?

MR. WEDDLE: Good afternoon, Your Honor, Chris Weddle, Timko and Moses, 1 North Broadway, White Plains, appearing for Tara Walsh.

COURT OFFICER: Ms. Jackman.

MS. JACKMAN: Good afternoon, Your Honor, Jennifer Jackman, attorney assigned to represent the child Evelyn Walsh.

COURT OFFICER: Mr. Russell, please raise your right hand. Do you solemnly swear or affirm to tell the truth?

S T E P H E N R U S S E L L, a witness herein, was examined and testified as follows:

MR. RUSSELL: I do.

COURT OFFICER: Please state your name and address for the record, unless confidential.

MR. RUSSELL: Stephen Grant Russell, it's 107

Bernard Street, in San Francisco, California, 94149.

COURT OFFICER: And, Ms. Walsh, please raise your right hand. Do you solemnly swear or affirm to tell the truth?

T A R A W A L S H, a witness herein, was examined and testified as follows:

MS. WALSH: I do.

COURT OFFICER: Please state your name and address for the record, unless confidential.

MS. WALSH: My name is Tara Walsh, and my address is confidential.

THE COURT: Is it confidential?

MR. DIFABIO: Judge, (inaudible).

COURT OFFICER: (Inaudible).

MR. DIFABIO: If I may, Your Honor, she did file for an order of confidentiality. The problem, however, is there's a misunderstanding within the Clerk's Office at Family Court. Ms. -- Ms. Walsh defaulted previously because she wasn't served by that court as they should by the confidentiality order. When I view the confidentiality order, it's not -- it's not fully filled in. And that's no disrespect to -- to your client, Chris.

MR. WEDDLE: No, I appreciate that. I can refile, Judge.

THE COURT: Okay. Because I'm just looking

through the file. It's a pretty long file, but I just didn't see the -- the paperwork for that. That's why I was asking. So you can follow up, Mr. Weddle?

MR. WEDDLE: Yes, Your Honor.

THE COURT: Just make sure that everything's in order.

MR. WEDDLE: Yes, Your Honor.

THE COURT: So good afternoon, we're -- we're -- I'm Judge Schauer. We're here for conference on a number of dockets pending before the Court. And you -- as you know, we've been having an attorneys' conference literally for hours. This matter was scheduled for 9:30.

Somebody's got to mute because I hear -- is that you, Ms. Walsh? I hear some background noise. So anyway, just -- but before we go further, I would like to advise you that the rules of the chief judge provide that recording, broadcasting or streaming of court proceedings is not permitted.

The Court is making the only official record this proceeding, and any violation can be prosecuted. So we have had lengthy discussions both to clarify the -- what petition should be pending to discuss the issues since this is my first appearance with this matter and to discuss the possibility of moving forward.

And I think we've made a lot of progress for

today and perhaps we'll start -- Mr. Weddle, you can just put everything on the record. I know there's a temporary order that's going to be issued on consent that will be in effect until we come back to court for -- for another conference which will be in a few weeks.

MR. WEDDLE: That's correct, Your Honor, and your -- that proposed order has been emailed to your court attorney and all counsel. As a threshold matter, the -- the two orders of Judge Horowitz entered on default on February 6th of 2020 and February 18th of 2020, we are consenting to the relief requested in Mr. Russell's motion so those defaults are vacated.

As a Temporary Order of -- of Custody and Visitation, just to get it sorted a bit, Ms. Walsh shall have legal and physical custody of Evie (ph) pending further order of this Court. Mr. Russell shall be having contact with Evie to -- to -- to reintroduce these two and that'll be by Zoom, and it'll be supervised by Jen Culley in Carmel (ph).

Those visits will take place per a minimum of three times a week. And of course, the length of those visits will be guided by Evie's attention span as monitored by Ms. Culley.

In addition, Mr. Russell's mother, Linda Russell, may have visitation with Evie as arranged between her and

Ms. Walsh. Said arrangements and consent shall not be unreasonably withheld, and we appreciate the Court's giving Parties a chance to sort this out without the -- the heavy hand of -- of -- of the Court.

In addition, Judge, the -- these -- these terms of this Temporary Order are without prejudice to any Parties raising any claims or defenses they may have in the future.

It's also my understanding that the Court will issue mirroring Orders of Protection on behalf of each party which will include a Stay Away Provision and a Refrain From Provision and a prohibition against communication until further order of this Court, and I believe that is it, Judge. Mr. DiFabio? Mr. DiFabio, you're muted. Did I get that right?

MR. DIFABIO: Sorry about that. Judge -- thank you, Mr. Weddle. Judge, my concerns are that with respect to Petitioner's grandmother -- I'm sorry -- the -- the paternal grandmother visiting the child, we've had this before where Ms. Walsh agreed to cooperate but really didn't cooperate, and I would ask that Your Honor please explain to Ms. Walsh that her cooperation is -- is required in this order, and it shall not be unreasonable if she declines to cooperate.

Also, Judge, with these Order -- Orders of

Protections, we -- we had gone back and forth, and our goal, our objective, was to resend all Orders of Protections for all parties so that these people can begin to communicate and to coparent without the fear of police involvement.

I understand that this is going to be a Temporary Order, the likelihood of my client coming to New York or having anything to do with Ms. Walsh is slim to none and we'll be back in two weeks to revisit these issues with the hopes of vacating all Orders of Protections, and that's all I have. To you, Ms. Jackman.

MS. JACKMAN: I'm in agreement with the order. It is a temporary order, and I'm hoping that we can move forward based upon this agreement today.

THE COURT: Okay. So as far as the Orders of Protection are concerned, I do echo Mr. DiFabio in that I hope there'll be some -- some peace in this interim period of time before we come back and that at some point the two of you will agree that it's not necessary to have these Orders of Protection.

But for today's purposes, I'm going to issue an Order of Protection that each of you shall not harass, assault, threaten, intimidate or commit any criminal offense against the other, that you're to stay away from each other, the home, place of business of each other and

that you're to have no communication by any means.

Do you understand, Mr. Russell, if you violate this Order of Protection you could be arrested and incarcerated?

MR. RUSSELL: I do, Your Honor.

THE COURT: And do you, Ms. Walsh, understand if you violate the Order of Protection you could be arrested and incarcerated? You're muted.

MS. WALSH: I do, Your Honor.

THE COURT: Okay. And as I said that Order of Protection will be in effect until the next court date, and we'll put that in a moment.

MS. WALSH: Your Honor --

THE COURT: The other thing -- yes?

MS. WALSH: Your Honor, if you would just let me say something fast, if possible. Or I can ask Chris, but I'm just -- I'm very concerned with Mr. Russell having an Order of Protection against me for a variety of reasons. I don't communicate with him. You know, I really try and keep my distance. I haven't communicated with him now for years so --

THE COURT: Then how could there be a violation?

MS. WALSH: It's just that he will use that in civil court to say that I've been like harassing and intimidating him because he has numerous civil cases

against me in California right now, one against me and my parents and another one just against me, one of which is set to go to trial on June 7th.

THE COURT: All right. Well, it's a Temporary Order. It will be in effect just for a couple of weeks.

MS. WALSH: Okay.

THE COURT: So maybe it'll even be done by the time we -- your next court date in California is June 7th?

MS. WALSH: Yes.

MR. DIFABIO: Judge, all -- I'm sorry, Your Honor, but if she's concerned that he's going to use an order against her in civil court, back to my original argument, why don't we vacate all the orders here so that we don't -- she doesn't have that worry?

THE COURT: Well, that's for something that you should discuss with your attorney, Ms. Walsh, because Mr. DiFabio and his client have agreed to withdraw their Family Offense Petition against you if you agree to withdraw against them.

Obviously, any petition that is withdrawn at this point is being done without prejudice. That means if there's another incident, you can refile. But I'm not in a position to tell you what -- what you should do. If you need some time to talk to your attorney, you can do that. Otherwise, this -- these Temporary Orders will be in effect

until we come back in two or three weeks.

The other thing is the provision with respect to the paternal grandmother having visits. I understand that there's been some -- not able to work out a specific schedule, and that's fine. The provision, I guess to allow discretionary appointments for the paternal grandmother to see Evie is -- is okay.

And if it works and everybody's satisfied, you can continue to go on that way. Most families don't have court orders telling them when they can see their grandchildren or their grandparents. It -- but -- but if you need one, I'll issue one.

So if it can't be worked out -- if -- if we come back and it turns out that -- that Grandma's not having meaningful visits and -- and it can't be arranged for whatever reason, I would entertain an application for a specific schedule for her.

So anything else that I need to say about that? She's three. I -- I imagine she has some activities but not an overwhelming amount.

MS. JACKMAN: And the grandmother doesn't live in New York either so it seems to me that we should be able to arrange a time for her to come in because she has to actually travel in. So it -- it's something that we should be able to do. It should not be very difficult.

THE COURT: Right. Right. It's something that Ms. Walsh can work out with Grandma, and you can do it informally because I think that's best. It's -- it's always better to have an informal arrangement than to have a specific court order because then you're stuck if there's a conflict with something -- maybe you want to go away for the weekend with your family, if it's Grandma's weekend, you can't go. So, you know, it's way better to be able to have an informal arrangement with somebody.

MS. JACKMAN: And if I may, Your Honor, I just want it to be clear that Ms. -- Mrs. Russell, the grandmother, is going to participate in some of the FaceTime calls with her son so that Evie's going to be introduced to her over the FaceTime calls. There's not going to be supervision for the visits that we're -- she's going to have with her granddaughter. I just want that to be clear.

THE COURT: Thank you. And I think we did discuss that -- that when Mrs. Russell had the child that she could FaceTime her son, the father so there wouldn't --

MR. DIFABIO: That -- that's -- that was -- that's in the order, Judge. That was the -- the Court's suggestion.

THE COURT: Right. Okay. So did -- did everybody hear the terms and conditions of the order? Ms.

Walsh, did you hear that terms and condition? It's a proposed order (inaudible) on consent. Do you have any questions about that order, Ms. Walsh?

MS. WALSH: I guess the only question is -- you know, is that I have a fairly friendly relationship with Linda Russell, so I've done a bunch of FaceTime calls and I've also done a few visits with her last year. My concern is that she really wanted to take Evie alone with her somewhere which I didn't completely feel comfortable with given, you know, that I have some concerns about her son.

I feel like he likely would be present if she took her alone somewhere, so I just ask that I at least initially be able to be there on the visits with the grandmother at least until she becomes comfortable -- Evie and I feel a little bit more comfortable.

THE COURT: Would anyone like to respond to that?

MR. DIFABIO: Your Honor, it -- it really doesn't make any sense. That's not the issue. My client -- I don't think my client's been back to New York since -- in about two years on information and belief.

Ms. -- Ms. Russell, again, is a registered nurse. She's a fine woman. She tried to spend time with her granddaughter alone and she was reasonable. She said it's fine if -- if Tara gets reacquainted with her, but then she has to go, and Judge Horowitz agreed with that -- that she

had to go away. Let them build a relationship. To -- to say that Mrs. Russell is going to abscond with this child is ridiculous.

MR. WEDDLE: I don't -- I don’t -- I don't think -- sorry for interrupting -- interrupting.

MR. DIFABIO: (Inaudible).

MR. WEDDLE: I don't think that's what was said.

MR. DIFABIO: Okay. And -- and --

THE COURT: I think what she said was she's afraid Mr. Russell would be there and -- and take the child. So you can put a provision in the order that -- that Mrs. Russell shall not supervise any in-person visit between Mr. Russell and the child. And I think that solves the problem, and I think -- you're all mindful.

You're here in court before a judge who ultimately may have to do a trial and may have to issue an order. And -- and -- and I or no judge likes to hear that people are violating the spirit of an agreement that's been entered into -- into court.

I do not expect Mr. Russell to come in and take Evie to California. If he does, there will be pretty severe consequences. It's that simple. And I don't think he's stupid enough to do that. So I -- I expect that everybody will comply with the court orders that I'm going to be signing off on and that when we come back, we'll be

able to move forward.

Obviously if there's a violation of the court order, it's going to have a negative impact on the person who violates it. Same thing with the Orders of Protection. Aside from the fact that you could be arrested, same thing I would say to you, Ms. Walsh. If you violate this Order of Protection -- it says no communication -- if you send an email to Mr. Russell and you say things to him that you shouldn't be saying and -- and that's a violation of the court order, that will be used against you ultimately if I have to have a trial.

So I expect everybody to do what they're supposed to do. And I have no reason to believe that you -- it's pretty simple. Did you hear the terms and conditions, Mr. Russell, of the Temporary Order?

MR. RUSSELL: I did.

THE COURT: Okay. And do you have any questions about it?

MR. RUSSELL: No. It's fine, Your Honor.

THE COURT: So we'll pick a date to come back. Do you want to put in the language, Mr. Weddle, and resubmit it -- the language about Mrs. --

MR. WEDDLE: (Inaudible) --

THE COURT: -- not --

MR. WEDDLE: Yes.

THE COURT: -- Mr. Russell not being present in person. I think it's pretty clear right now from the record that Mr. Russell is not having in-person access with his daughter at this point. And we'll discuss that at future court proceedings when -- and that depends largely on your schedule, Mr. Russell.

I mean your -- your in-person access to your daughter is what I'm talking about. So I have some like very close days and some very far days. So I'm going to throw out my close day, and we'll see if that works. June 1st?

MS. JACKMAN: That's fine.

MR. DIFABIO: In -- in the afternoon would be fine, Judge, but do we want another week or two do you think?

THE COURT: Well -- okay, I can try, but what I said is like I'm very -- I start getting really busy after that so let me see when my next availability would be.

MS. JACKMAN: Can I -- can I just say something though, Judge? This is exactly like what Jennifer was saying. I -- really don't really know what Ms. Walsh has said to the child about her father, but I assume she knows she has a father.

So it's only about reacquainting them on the FaceTime so it -- so we're not doing this for a long time.

We just want to reintroduce them so that she has a face to go with this, you know, figure of daddy, and then the goal is to have the in-person visits. So I think June 1st, even though it is -- maybe two weeks away is -- is really enough time if we're having contact by FaceTime three times a week.

MR. DIFABIO: All I would ask for, you know, is an afternoon call on that date, please.

THE COURT: I can do June 1st at 2:00. Otherwise, I have a lot of stuff coming up in the day. Otherwise, my next day would be June 16th.

MS. JACKMAN: I can do that day (inaudible) --

MR. WEDDLE: June 1st works for me.

MR. DIFABIO: Judge, I -- I'd rather do June 1st. I really -- I'd like to -- I'd -- I'd like to use hopefully the 16th for another report on how his in-person visits are going.

THE COURT: Can't guarantee it'll be open, but you'll do June 1st at 2:00.

MR. DIFABIO: Thank you, Your Honor.

THE COURT: Anything else that we need to address?

MR. WEDDLE: Yeah, do we -- do we expect Jen Culley to submit a report to Your Honor?

MS. JACKMAN: I don't think she needs to. I

mean, it -- it -- I think she's -- she's facilitating a reintroduction.

MR. WEDDLE: Okay. So she can just talk to you, Jennifer?

MS. JACKMAN: I'd rather her submit a report then, if that's what you want.

THE COURT: I mean (inaudible) --

MS. JACKMAN: I don't want a report -- I -- I -- mean --

THE COURT: -- I can have her -- I can have her submit a report.

MS. JACKMAN: Okay.

THE COURT: I don't think that hurts. Mr. DiFabio?

MR. DIFABIO: Yeah, I just want Chris to know, Judge, that I spoke to Jennifer Culley already, and Jennifer Culley said it was permissible for me to be on the call as she does an intake with Steve, my client, tomorrow at 11 a.m. So that's all they're going to do. According to what we discuss, she's going to facilitate and report if necessary.

MR. WEDDLE: Oh, okay.

MR. DIFABIO: For example, if things go south, obviously she'll report. She's a mandated reporter. But ideally Jennifer's going to stay out of the conversation.

MR. WEDDLE: Right.

MS. JACKMAN: Jennifer Culley. I'm not involved --

MR. WEDDLE: Oh.

MS. JACKMAN: -- at all so --

MR. DIFABIO: (Inaudible) --

MS. JACKMAN: -- now there's two Jennifers.

MR. DIFABIO: -- (inaudible) conversation you want.

MS. JACKMAN: I'm not involved at all in any of this.

MR. DIFABIO: That's (inaudible) --

THE COURT: (Inaudible) though. I -- I would like a report if there's something to report.

MR. DIFABIO: Yeah.

THE COURT: So if visits are -- if there's some reason the visits are going poorly, we can have a report. Otherwise, my understanding would be that the visits are going okay.

MS. WALSH: Can I just ask --

MS. JACKMAN: So should we just say if Jennifer has any concerns she should submit them in the report -- submit a report or otherwise --

THE COURT: Sure. Yes, Ms. --

MS. WALSH: Oh, sorry, Your Honor. How -- how

are these visit -- or the FaceTime calls going to be scheduled with the supervisor, Jennifer, and should I do an intake as well? Like should I contact her? I just don't know what the logistics would be.

MR. WEDDLE: I'll figure that out.

THE COURT: Mr. DiFabio's raising his hand.

MR. DIFABIO: Yes. What's going to happen is Jennifer's going -- Jennifer has contact info is (inaudible).

MS. JACKMAN: Jennifer Culley.

MR. DIFABIO: Ms. Walsh can call her, set up an intake. My client and I have already scheduled one for tomorrow. So -- so time is limited. And to facilitate it, my understanding is she's going to send a Zoom link to Mr. Russell, send a Zoom link to Tara. Tara will put Evie on and then back away and let Dad and Evie just play on Zoom for a while. But -- but Ms. Walsh is not to be part of those meetings.

THE COURT: Yes. Hopefully you'll be able to get out of the -- the room and -- I don't know if you can put the computer in her bedroom or -- somewhere she can have some privacy.

And we -- we all understand she's very young. She may run after you. She may run out of the room. She may not want to interact with the screen. But, you know,

(inaudible) --

MS. WALSH: Yeah, she's -- she (inaudible) because she's FaceTimed with her grandmother. So she -- she usually like looks for me for affirmation like when she's doing things. So I can just stand by initially and then, you know, walk out or give her an ice pop or something so she's (inaudible) --

THE COURT: Maybe you need to get some -- I don't know, some toys or some books or something and maybe you could read her a story, or you know, some way to try to draw her in to keep her attention because -- because she's not going to have a conversation with you about, you know, how things are going in her life.

MS. JACKMAN: Jennifer is --

MR. DIFABIO: That's exactly what --

MS. JACKMAN: -- Jennifer's -- yeah, that's what she said.

MR. DIFABIO: -- exactly what Ms. Culley said, Your Honor.

MS. JACKMAN: Yeah.

MR. DIFABIO: Very good.

THE COURT: Okay. All right. So it sounds like we're all on the same page, and we'll email the Orders of Protection. We'll email the Order -- the Temporary Order of Custody and Access, and I will see you all back June 1st

at 2:00. Thank you.

MS. WALSH: Thank you.

MR. DIFABIO: Your Honor, Counsel, thank -- thank you all. It was very productive today. Thank you so much.

MS. JACKMAN: Thank you for your time.

MS. WALSH: Thank you.

MR. RUSSELL: Thank you, Judge.

MS. WALSH: Bye.

UNIDENTIFIED VOICE: Bye.

COURT OFFICER: Thank you everyone.

(3:16:28 p.m.)[PROCEEDING CONCLUDED]

CERTIFICATE: I, Valeri Wilson, certify the foregoing transcript of proceedings held at Yonkers Family Court, NYS, T. Walsh vs. S. Russell, File #154703, was prepared using the required electronic equipment and is a true and accurate record of the proceedings.

Signature: Date June 21, 2021

Valeri Wilson

Electronic signature

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